

- (i) an order of suspension made or deemed to have been made under Rule 5;
- (ii) an order imposing any of the penalties specified in Rule 6 whether made by the disciplinary authority or by an appellate or revising authority;
- (iii) an order enhancing any penalty imposed under Rule 6;
- (iv) an order which -
 - (a) denies or varies to his disadvantage his pay, allowances, pension, Provident Fund benefits, service gratuity or other conditions of service as regulated by rules or by agreement; or
 - (b) interprets to his disadvantage the provisions of any such rule or agreement;
- (v) an order :-
 - (a) stopping him at the efficiency bar in the time-scale of pay on the ground of his unfitness to cross the bar;
 - (b) reverting him while officiating in a higher service, grade or post to a lower service, grade or post otherwise than as a penalty;
 - (c) reducing or withholding the pension or denying the maximum pension admissible to him under the rules, if he is a pensionable Railway servant;
 - (d) reducing or withholding the Government contribution to Provident Fund and Special Contribution to Provident Fund or Gratuity admissible to him under the State Railway Provident Fund Rules, and Gratuity Rules, if he is a non-pensionable Railway servant;
 - (e) determining the subsistence and other allowances to be paid to him for the period of suspension or for the period during which he is deemed to be under suspension or for any portion thereof;
 - (f) determining his pay and allowances :-
 - (i) for the period of suspension, or
 - (ii) for the period from the date of his dismissal, removal or compulsory retirement from service to the date of his reinstatement;
 - (g) determining whether or not the period from the date of his suspension or from the date of his dismissal, removal or compulsory retirement to the date of his reinstatement shall be treated as a period spent on duty for any purpose.

Explanation:- In this rule -

- (i) the expression 'Railway servant' includes a person who has ceased to be in Railway Service;
- (ii) the expression 'pension' includes additional pension, gratuity and any other retirement benefit.

19. Appellate Authorities -

- (1) A Railway servant, including a person who has ceased to be in Railway service, may prefer an appeal against all or any of the orders specified in Rule 18 to the authority specified in this behalf either in the Schedules or, where no such authority is specified -

- (i) where a penalty is imposed by a revising authority under Rule 25, to the authority to which it is immediately subordinate;
- (ii) where a penalty is enhanced, either in appeal or on revision, to the authority to which the authority making the order is immediately subordinate;
- (iii) in the case of an appeal against an order specified in clause (iv) of Rule 18, relating to a rule, to the authority which appointed the appellant or the authority which made the rule to which the order under appeal relates, whichever of them may be the higher authority, and in the case of an appeal relating to an agreement, to the authority which appointed the appellant;
- (iv) in case of an appeal against an order specified in clause (v) of Rule 18 -
 - (a) in respect of a Railway servant on whom the penalty of dismissal from service can be imposed only by the President, to the President; and
 - (b) in respect of any other Railway servant, to the authority to which the authority making the order is immediately subordinate.

(2) Notwithstanding anything contained in sub-rule (1),

- (i) an appeal against an order in a common proceeding held under Rule 13, shall lie to the authority to which the authority functioning as the disciplinary authority for the purpose of that proceeding, is immediately subordinate;
- (ii) where the person who made the order appealed against becomes, by virtue of his subsequent appointment or otherwise, the appellate authority in respect of such order, an appeal against such order shall lie to the authority to which such person is immediately subordinate:

Provided that in a case where the appellate authority is the Railway Board, the appeal shall be dealt with by any Member of the Railway Board, who has not made the order appealed against.

(3) A Railway servant may prefer an appeal against an order imposing any of the penalties specified in Rule 6 to the President, where no such appeal lies to him under sub-rule (1) or sub-rule (2), if such penalty is imposed by any authority other than the President, on such Railway servant in respect of his activities connected with his work as an office bearer of an association, federation or union participating in the Joint Consultation and Compulsory Arbitration Scheme.

20. **Period of limitation for appeals -**

No appeal preferred under this part, shall be entertained unless such appeal is preferred within a period of forty-five days from the date on which a copy of the order appealed against, is delivered to the appellant:

Provided that the appellate authority may entertain the appeal, after the expiry of the said period, if it is satisfied that the appellant had sufficient cause for not preferring the appeal in time.